

26NWCV01504 26NWCV01504

County: los-angeles

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Case Number: 26NWCV01504 Hearing Date: September 18, 2026 Dept: C

BOURBON HOLDINGS LLC vs EDMUND SIERRA

CASE NO.: 26NWCV01504

HEARING: 9/18/26 @ 9:30 a.m.

#18

TENTATIVE ORDER

I.

Plaintiff

BOURBON HOLDINGS LLC's Motion to Appraise Real Property is GRANTED.

II.

Plaintiff's

Motions to Compel Responses to Form Interrogatories (Set One), Request for Production of Documents (Set One), and Special Interrogatories (Set One) are GRANTED. Defendant to serve verified responses without objections within 10 days.

Moving party to give
notice.

MOTION TO APPRAISE REAL PROPERTY

Plaintiff BOURBON HOLDINGS LLC moves for the Court to (1) appoint a disinterested real estate appraiser licensed in the State of California, (2)

authorize entry by the appraiser onto the Subject Property, (3) direct the appraiser to submit their sworn or verified appraisal to the Court pursuant to Code of Civil Procedure section 874.316.

Defendant Edmund Sierra filed an opposition to the motion on September 4, 2026.

Background

This is a partition action. In a Complaint filed on April 29, 2026, Plaintiff BOURBON HOLDINGS LLC (Plaintiff) alleges that the real property located at 3111 Saturn Ave., Huntington Park, CA 90255 was originally owned by Claudia Sierra. (Complaint, ¶10a.)

When Claudia passed away, the property was subject to probate proceedings. (Ibid.)

The Probate Order vested title 50% to Edmund Sierra and 50% to Laurie Morales.

(Id., ¶10b.) Morales

conveyed her interest in the Property to Plaintiff. (Id., ¶10c.) Plaintiff further alleges the parties have attempted to negotiate a sale of the property from one party to the other without success. Partition by sale of the property is more equitable than division in kind of the property because the property contains only one single family home. (Complaint, ¶¶ 14-15.)

Legal Standard

In partition actions brought pursuant to the Partition of Real Property Act, the Court determines the “fair market value of the property by ordering an appraisal,” unless “all cotenants have agreed to the value of the property or to another method of valuation.” (Code Civ. Proc., § 874.316, subds. (a)-(b).) But “[i]f the court determines that the evidentiary value of an appraisal is outweighed by the cost of the appraisal, the court, after an evidentiary hearing, shall determine the fair market value of the property and send notice to the parties of the value.” (Code Civ. Proc., § 874.316, subd. (c).) “If any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.” (Code Civ. Proc., § 874.317, subd. (a).)

“If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to

determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court." (Code Civ. Proc., § 874.316, subd. (d).)

Discussion

In Opposition to the motion, Defendant appears to argue that Plaintiff's interest in the property is based upon a fraudulent chain of title. However, the documents submitted by Defendant do not establish such a claim.

Accordingly, the Motion to Appraise Real Property is GRANTED.

The Court will determine the fair market value of the property by ordering an appraisal to be performed by a disinterested real estate appraiser licensed in California, assuming full ownership of a fee simple interest (i.e., without taking into account fractional interest discounts). (Code Civil Proc., § 874.316(a), (d).)

Once the appraisal is completed, the appraiser files a sworn or verified appraisal with the court, after which, the court must send notice, not later than ten days after the appraisal is filed, to each party with a known address, stating:

— the appraised value of the property,

— the availability of the appraisal at the court clerk's office, and

— the party's right to file an objection stating the grounds therefor no later than 30 days after the notice is sent.

(Code Civil Proc., § 874.316(d)-(e).)

The Court will set a hearing at least 30 days after notice of the appraisal is sent to the parties to allow for possible objection, and

may consider any evidence of value offered by a party in addition to the court-ordered appraisal in determining the fair market value of the property. This determination must be made, and notice given to the parties of the value after the hearing, but before the court may consider the merits of the partition action. (Code Civil Proc., § 874.316(f), (g).)

Plaintiff contends that Defendant has opposed partition and has not agreed to the value of the Subject Property or an alternative method of valuation as described in Code Civil Proc., 874.316(b).

Moreover, Plaintiff contends that the evidentiary value of an appraisal is not outweighed by its cost. (Code Civil Proc., 874.316(c).) Plaintiff believes that the Subject Property is worth \$580,000 to \$600,000, whereas an appraisal is available to Plaintiff for \$700. It might cost more for a disinterested appraiser unrelated to Plaintiff, but not so much more that it would outweigh its value.

The Court orders an appraisal of the Subject Property by a disinterested real estate appraiser licensed in the State of California per Code of Civil Procedure section 874.316, subdivision (d). Each party may submit a list of up to three recommended appraisers within five (5) business days. Costs for the appraisal shall be paid by moving party.

The Court sets a status conference re appraisal on November 6, 2026 at 9:30 a.m. in Dept. SE-C.

MOTIONS TO COMPEL DISCOVERY RESPONSES

Plaintiff moves to compel responses from Defendant to Form Interrogatories (Set One), Request for Production of Documents (Set One), and Special Interrogatories (Set One). On June 6, 2026, Plaintiff served Form Interrogatories (Set One), Request for Production of Documents (Set One), and Special Interrogatories (Set One) upon Defendant. (Paloci Decl., ¶13.) As of the filing date of the motions (August 19, 2026) no responses had been received from Defendant. Defendant has not opposed the motions.

Accordingly, the motions are GRANTED. Defendant is ordered to serve verified responses, without objection or assertion of privilege, within 10 days.